

Naval Singh Maurya vs The State Of Madhya Pradesh on 21 June, 2022

Author: Gurpal Singh Ahluwalia

Bench: Gurpal Singh Ahluwalia

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IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR

BEFORE

HON'BLE SHRI JUSTICE GURPAL SINGH AHLUWALIA

ON THE 21st OF JUNE, 2022

MISCELLANEOUS CRIMINAL CASE NO. 25054 of 2022

Between: -

NABAL SINGH MORYA S/O
HARIVILAS MORYA, AGE : 31
YEARS, OCCUPATION :
GOVERNMENT SERVANT, R/O
VILLAGE KHERIDABARIYA,
POLICE STATION ANTARI, TAHSIL
DABRA (DISTRICT SHIVPURI),
(MADHYA PRADESH)

.....APPLICANT

(BY SHRI ARUN KUMAR PATERIYA - ADVOCATE)

AND

THE STATE OF MADHYA PRADESH
THROUGH INCHARGE OFFICER,
POLICE STATION KOTWALI
(DISTRICT SHIVPURI) (MADHYA
PRADESH)

.....RESPONDENT

(SHRI RAJEEV UPADHYAY - ADVOCATE FOR STATE AND
SHRI I.S. ASTHNA - ADVOCATE FOR COMPLAINANT)

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This application coming on for hearing this day, the Court passed the following:

ORDER

Case diary is available.

This fifth application under Section 439 of Cr.P.C. has been filed for grant of bail. Fourth application was dismissed as withdrawn by order dated 25.03.2022 passed in M.Cr.C. No.13375/2022.

The applicant has been arrested on 05.03.2021 in connection with Crime No.105/2021 registered at Police Station Kotwali District Shivpuri for offence under Sections 376, 323, 506 of IPC.

It is submitted by the counsel for the applicant that although previous bail applications of the applicant have already been dismissed on merits, but it is clear that the prosecutrix had filed first appeal against a decree of divorce and, therefore, in view of the statutory provisions of Section 15 of the Hindu Marriage Act, she was not entitled to get re-married. In spite of that, if she entered into a relationship with the applicant, then it cannot be said that any false promise of marriage was made by the applicant. Furthermore, the prosecutrix was held guilty of committing murder of her step son and since her first husband did not enter into compromise, therefore, various false cases were got registered against him and in all those cases, the husband of the prosecutrix namely Raju Jatav was acquitted. Thus, it is clear that the prosecutrix is of vindictive nature. She is major and since she was under legal disqualification to remarry during pendency of First Appeal No.1904/2019 which was ultimately dismissed on merits, it is clear that no case of taking her consent by misconception of fact is made out.

Per contra, the application is vehemently opposed by the counsel for the State as well as counsel for the complainant. It is submitted that merely because the prosecutrix has been convicted on the allegation of killing her own step son, will not invite any legal disqualification of making any FIR if any offence is committed with her.

Heard the learned counsel for the parties.

So far as the question of legal disqualification in view of Section 15 of the Hindu Marriage Act is concerned, it is well established principle of law that even if the second marriage is performed without waiting the outcome of the appeal, then still the second marriage cannot be held to be void. The Supreme Court in the case of Anurag Mittal Vs. Shaily Mishra Mittal reported in (2018) 9 SCC 691 has held as under:

"S.A. BOBDE, J. (supplementing)-- I am in agreement with the view taken by Nageswara Rao, J. but it is necessary to state how the question before us has already been settled by the decision in Lila Gupta v. Laxmi Narain [Lila Gupta v. Laxmi Narain, (1978) 3 SCC 258] . Even when the words of the proviso were found to be prohibitory in clear negative terms --

"it shall not be lawful", etc., this Court held that the incapacity to marry imposed by the proviso did not lead to an inference of nullity, vide para 9 of Lila Gupta [Lila Gupta v. Laxmi Narain, (1978) 3 SCC 258] . It is all the more difficult to infer nullity when there is no prohibition; where there are no negative words but on the other hand positive words like "it shall be lawful".

Assuming that a marriage contracted before it became lawful to do so was unlawful and the words create a disability, it is not possible to infer a nullity or voidness vide paras 9 and 10 of Lila Gupta case [Lila Gupta v. Laxmi Narain, (1978) 3 SCC 258] . The Court must have regard to the consequences of such an interpretation on children who might have been conceived or born during the period of disability." The Supreme Court in the case of Krishnaveni Rai Vs. Pankaj Rai & another by judgment dated 19.02.2020 passed in Criminal Appeal No.321/2020 has held as under:-

"30. Contravention of Sections 5(ii) or 5(iii) of the Hindu marriage Act does not render the marriage null and void. In such a case, the marriage is voidable at the option of the underaged party to the marriage or the party who could not have validly consented to the marriage."

Thus, it is clear that even if second marriage is performed during pendency of first appeal, then the said marriage cannot be said to be void. Furthermore, the prosecutrix is said to have supported the prosecution case.

At this stage, it is submitted by the counsel for the applicant that the Trial Court may be directed to expedite the disposal of the trial as the applicant is in jail from 05.03.2022.

So far as the prayer for early disposal of the trial is concerned, the Supreme Court in the case of M. Gopalakrishnan and others vs. Pasumpon Muthuramalingan and another by judgment dated 11.03.2022 passed in SLP (Crl.) Diary No.30839/2021 has held that the High Court should not give direction of expediting the hearing in a cursory manner thereby disturbing the calendar of the Trial Court.

Considering the totality of the facts and circumstances of the case, this Court is of the considered opinion that no case is made out for taking contrary view in the matter.

The application fails and is hereby dismissed.

(G.S. AHLUWALIA) JUDGE Abhi ABHISHEK CHATURVEDI 2022.06.23 16:06:14 +05'30'